CITY OF PIEDMONT MEASURE GG

GG Shall the measure, providing funding for City of Piedmont's essential city services, such as police, fire, and emergency medical response; and maintenance of aging City buildings, parks, stormwater drains, roads and sidewalks, by increasing the real estate transfer tax from 1.3% to 1.75% to be more in line with neighboring cities and to generate approximately $1,500,000 annually in general tax revenue until ended by voters, be adopted?	**YES**
	NO

CITY ATTORNEY'S IMPARTIAL ANALYSIS OF MEASURE GG

The City Council voted to place Measure GG on the November 3, 2026, ballot.

If passed by the voters, Measure GG would increase the existing real property conveyance tax from the existing rate of $13.00 per $1,000 (1.3%) of transfer price, to $17.50 per $1,000 (1.75%) of transfer price. The real property conveyance tax is levied when real property is either sold or transferred to a new owner in exchange for anything of value, and is collected to raise revenue for the usual and current expenses of the City.

If passed by the voters, Measure GG would also retitle Chapter 20, Article IV of the Piedmont City Code so that this tax is referenced as "Real Estate Transfer Tax."

Chapter 20, Article IV of the City Code currently includes exemptions from the real property conveyance tax for transfers that relate to public agencies, bankruptcy proceedings, foreclosures, terminations of partnerships, and debt securitization. If passed by the voters, Measure GG would revise existing exemptions from the Transfer Tax regarding public agencies to specifically exclude property transfers made from a public agency to a nonprofit corporation where the acquisition, construction or improvement of such property is made with certain tax-exempt bond financing.

If passed by the voters, Measure GG would make other revisions to remove references to repealed federal regulations, clarify the process for obtaining a redetermination of the tax amount assessed on a transfer, and make other amendments to Chapter 20, Article IV of the City Code to be gender neutral.

It is estimated that this tax will generate approximately $1,521,000 of additional revenue annually. Funds generated by the proposed tax increase are not restricted and may be used for any City general revenue purpose.

A "YES" vote would be in favor of Measure GG. A "NO" vote would be against Measure GG. Measure GG would take effect only if it receives a majority vote of the ballots cast.

The above statement is an impartial analysis of Measure GG. If you desire a copy of Measure GG, please call the City of Piedmont's City Clerk's Office at (510) 420-3040 and a copy will be mailed at no cost to you.

s/DENISE S. BAZZANO
Acting City Attorney for the City of Piedmont

ARGUMENT IN FAVOR OF MEASURE GG

For almost 60 years Piedmont has depended on its transfer tax to fund critical services for Piedmont residents. Fire protection, police services, emergency medical response, street and sidewalk repair and more are funded, in part, by the city's transfer tax.

Measure GG will raise Piedmont's transfer tax from 1.3% to 1.75% (generally split between the buyer and seller when a home is sold).

Approval of this measure will put Piedmont's transfer tax more in line with neighboring cities that have updated their measures over the years. The last time Piedmont's measure was updated was over 30 years ago.

Measure GG will generate approximately $1,500,000 a year. Unlike state or county revenue measures, all money raised by Measure GG stays in Piedmont to support essential city services.

Measure GG is supported by Piedmont's Budget Advisory and Financial Planning Committee, Piedmont's City Council, eight former Mayors, and all members of the Piedmont Board of Education.

Vote Yes on Measure GG.

s/ BETSY SMEGAL ANDERSEN
Mayor, City of Piedmont

s/ CONNA MCCARTHY
Vice Mayor, City of Piedmont

s/ RUCHI MEDHEKAR
President, Piedmont Board of Education

s/ ROBERT S. MCBAIN
Chair, Budget Advisory and Financial Planning Committee

s/ KIM M. HUNTER
Retired Alameda County Senior Deputy District Attorney

NO ARGUMENT AGAINST MEASURE GG WAS SUBMITTED

FULL TEXT OF MEASURE GG

ORDINANCE NO. 792 N.S.

AN ORDINANCE RETITLING AND AMENDING CHAPTER 20, ARTICLE IV OF THE PIEDMONT CITY CODE PROVIDING FOR AN INCREASE OF THE REAL PROPERTY CONVEYANCE TAX

The People of the City of Piedmont hereby ordains as follows:

SECTION 1. FINDINGS

It is the intent of the City Council of the City of Piedmont in adopting this Ordinance to provide for the increase of an existing tax imposed on each transfer, by deed, instrument or writing, by which any lands, tenements or other real property sold, located in the City. The increase in such tax is made necessary due to the escalating costs of maintaining aging infrastructure such as City buildings, parks, stormwater drains, roads and sidewalks, the escalating operating costs of which are outpacing the growth of City revenues; the City's desire to maintain the quality of essential services provided, such as police, fire, and emergency medical response, and to address the City's ongoing capital needs; and the City Council's determination that without additional revenues, the City will be compelled to make spending reductions to programs and services that may jeopardize the public health, safety and general welfare of residents and visitors, as well as curtail funding for maintenance, construction and other improvements to City facilities, infrastructure and the natural environment. As a result, the City Council has determined that it is appropriate and fiscally prudent to submit a revised real property conveyance tax to the voters. The tax would apply to the sale of real property until ended by the voters; and revenues from the tax could be used for any legitimate governmental purpose; this measure is not a commitment to any particular action or purpose.· The tax is a general tax and shall be approved if the measure receives at least a simple majority of affirmative votes. Further, this Ordinance also modernizes the title of this tax .

SECTION 2. AMENDMENT OF CHAPTER 20, ARTICLE IV

Chapter 20, Article IV of the City Code is hereby retitled and amended to read in its entirety as follows:

"ARTICLE IV. REAL ESTATE TRANSFER TAX

SEC. 20.83 TITLE AND PURPOSE

This article may be cited as the "Piedmont Real Estate Transfer Tax Ordinance." The tax imposed under this article is a general tax solely for the purpose of raising revenue for the usual and current expenses of the City. This article is not enacted for regulatory purposes.

SEC. 20.84 IMPOSITION OF TAX

A tax is hereby imposed on each transfer, by deed, instrument or writing, by which any lands, tenements or other real property sold, located in the City, are or is granted, assigned, transferred or otherwise conveyed to, or vested in, a purchaser or purchasers thereof, or any other person or persons at or by the direction of said purchaser or purchasers, when the value of the consideration exceeds one hundred dollars, said tax to be at the rate of $17.50 for each one thousand dollars or fractional part of one thousand dollars of the value of the consideration (1.75%). Transfers for no consideration are exempt.

As used herein, "value of the consideration" means the total consideration, valued in money of the United States, paid or delivered or contracted to be paid or delivered in return for the transfer of real property, including the amount of any indebtedness, existing immediately prior to the transfer which is secured by a lien, deed of trust or other encumbrance on the property conveyed and which continues to be secured by such lien, deed of trust or encumbrance after said transfer, and also including the amount of any indebtedness which is secured by a lien, deed of trust or encumbrance given or placed upon the property in connection with the transfer to secure the payment of the purchase price or any part thereof which remains unpaid at the time of the transfer. "Value of the consideration" also includes the amount of any special assessment levied or imposed upon the property by a public body, district or agency, where said special assessment is a lien or encumbrance on the property and the purchaser or transferee agrees to pay such a special assessment or takes the property subject to the lien of such special assessment. The value of any lien or encumbrance of a type other than those which are hereinabove specifically included, existing immediately prior to the transfer and remaining after said transfer, shall not be included in determining the value of the consideration. If the value of the consideration cannot be definitively determined, or is left open to be fixed by future contingencies, "value of the consideration" shall be deemed to mean the fair market value of the property at the time of transfer after deducting the amount of any lien or encumbrance if any of a type which would be excluded in determining the value of the consideration pursuant to above provisions of this section.

SEC. 20.85 LIABILITY FOR PAYMENT

Any tax imposed pursuant to section 20.84 hereof shall be paid by any person who makes, signs or issues any document or instrument by which any lands, tenements or other real property sold, located in the City, are or is granted, assigned, transferred or otherwise conveyed to, or vested in, a purchaser or purchasers thereof or for whose use or benefit the same is made, signed or issued.

SEC. 20.86 EXEMPTION-WRITTEN SECURITY INSTRUMENT

Any tax imposed pursuant to this article shall not apply to any instrument in writing given to secure a debt.

SEC. 20.87 SAME-UNITED STATES, STATE OR POLITICAL SUBDIVISION

Any deed, instrument or writing to which the United States or any agency or instrumentality thereof, any state or territory, or political subdivision thereof, is a party shall be exempt from any tax imposed pursuant to this article when the exempt agency is acquiring title. Any tax imposed by this article shall also not apply with respect to any deed, instrument or other writing by which the State of California, any political subdivision thereof, or any agency or instrumentality of either thereof, conveys to a nonprofit corporation realty, and the acquisition, construction or improvement of which was financed or refinanced by obligations issued by the nonprofit corporation on behalf of a government unit, within the meaning of Section 1.103-1 (b) of Title 26 of the Code of Federal Regulations.

SEC. 20.88 SAME-BANKRUPTCY PROCEEDINGS

Any tax imposed pursuant to this article shall not apply to the making, delivering or filing of conveyances to make effective any plan of reorganizing or adjustment:

(a) Confirmed under the Federal Bankruptcy Act, as amended;

(b) Approved in an equity receivership proceeding in a court involving a railroad corporation, as defined in subdivision (m) of Section 205 of Title 11 of the United States Code, as amended;

(c) Approved in an equity receivership proceeding in a court involving a corporation, as defined in subdivision (3) of Section 506 of Title 11 of the United States Code, as amended; or

(d) Whereby a mere change in identity, form or place of organization is effected.

Subdivisions (a) to (d), inclusive, of this section shall only apply if the making, delivery or filing of instruments of transfer or conveyances occurs within five years from the date of such confirmation, approval or change.

SEC. 20.89 SAME INSTRUMENTS PURSUANT TO S.E.C. ORDER

Any tax imposed pursuant to this article shall not apply to the making or delivery of conveyances to make effective any order of the Securities and Exchange Commission, as defined in subdivision (a) of Section 1083 of the Internal Revenue Code of 1954; but only if:

(a) The order of the Securities and Exchange Commission in obedience to which such conveyance is made recites that such conveyance is necessary or appropriate to effectuate the provisions of Section 79K of Title 15 of the United States Code, relating to the Public Utility Holding Company Act of 1935;

(b) Such order specifies the property which is ordered to be conveyed; and

(c) Such conveyance is made in obedience to such order.

SEC. 20.90 SAME-PARTNERSHIPS

(a) In the case of any realty held by a partnership, no levy shall be imposed pursuant to this article by reason of any transfer of an interest in a partnership or otherwise if:

(1) Such partnership (or another partnership) is considered a continuing partnership within the meaning of Section 708 of the Internal Revenue Code of 1954; and

(2) Such continuing partnership continues to hold the realty concerned.

(b) If there is a termination of any partnership within the meaning of Section 708 of the Internal Revenue Code of 1954, for purposes of this article, such partnership shall be treated as having executed an instrument whereby there was conveyed, for fair market value (exclusive of the value of any lien or encumbrance remaining thereon), all realty held by such partnership at the time of such termination.

(c) Not more than one tax shall be imposed pursuant to this article by reason of a termination described in subdivision (b) of this section, and any transfer pursuant thereto, with respect to the realty held by such partnership at the time of such termination.

SEC. 20.91 INSTRUMENTS IN LIEU OF FORECLOSURE

Any tax imposed pursuant to this article shall not apply with respect to any transfer to a beneficiary or mortgagee which is taken in lieu of a foreclosure.

SEC. 20.92 ADMINISTRATION OF TAX

The tax collector of the City (hereinafter in this article referred to as "tax collector") shall collect the tax imposed under this article and shall otherwise administer this article. The tax collector may make such rules and regulations, not inconsistent with the article, as the tax collector may deem reasonably necessary or desirable to administer this article.

SEC. 20.93 DUE DATES; DELINQUENCY; PENALTIES; INTEREST

The tax imposed under this article is due and payable at the time of the deed, instrument or writing effecting a transfer subject to the tax is delivered, and is delinquent if unpaid at the time of recordation thereof. In the event that the tax is not paid prior to becoming delinquent, a delinquency penalty of ten percent of the amount of tax shall accrue.

In the event a portion of the tax is unpaid prior to becoming delinquent, the penalty shall only accrue as to the portion remaining unpaid. An additional penalty of ten percent shall accrue if the tax remains unpaid on the ninetieth day following the date of the original delinquency. Interest shall accrue at the rate of one-half of one percent a month or fraction thereof, on the amount of tax, exclusive of penalties, from the date the tax becomes delinquent to the date of payment. Interest and penalty accrued shall become a part of the tax.

SEC. 20.94 DECLARATION REQUIRED

The tax imposed by this article shall be paid to the tax collector by the persons referred to in section 20.85. Payment shall be accompanied by a declaration of the amount of tax due signed by the person paying the tax or by their agent. The declaration shall include a statement that the value of the consideration on which the tax due was computed includes all indebtedness secured by liens, deeds of trust, or other encumbrances remaining or placed on the property transferred at the time of transfer, and also includes all special assessments on the property which the purchaser or transferee agrees to pay or which remain a lien on the property at the time of transfer. The declaration shall identify the deed, instrument or writing effecting the transfer for which the tax is being paid. The tax collector may require delivery to them of a copy of such deed, instrument or writing whenever the tax collector deems such to be reasonably necessary to adequately identify such writing or to administer the provisions of this article. The tax collector may rely on the declaration as to the amount of the tax due, provided the tax collector has no reason to believe that the full amount of the tax due is not shown on the declaration.

Whenever the tax collector has reason to believe that the full amount of tax due is not shown on the declaration or has not been paid, the tax collector may, by notice served upon any person liable for the tax, require them to furnish a true copy of the records relevant to the value of the consideration or fair market value of the property transferred. Such notice may be served at any time within three years after recordation of the deed, instrument or writing which transfers such property.

SEC. 20.95 DETERMINATION OF DEFICIENCY

If on the basis of such information as the tax collector receives pursuant to the last paragraph of section 20.94 and/or on the basis of such other relevant information that comes into the tax collector's possession, determines that the amount of tax due as set forth in the declaration, or as paid, as insufficient, the tax collector may re-compute the tax due on the basis of such information.

If the declaration required by section 20.94 is not submitted, the tax collector may make an estimate of the value of the consideration for the property conveyed and determined the amount of tax to be paid on the basis of any information in the possession or that may come into the tax collector's possession.

One or more deficiency determinations may be made of the amount due with respect to any transfer.

SEC. 20.96 NOTICE OF DETERMINATION

The tax collector shall give notice to a person liable for payment of the tax imposed under this article of the tax collector's determination made under section 20.95 ("Notice of Determination"). Such Notice of Determination shall be given within three years after the recordation of the deed, instrument or writing effecting the transfer on which the tax deficiency determination was made.

SEC. 20.97 MANNER OF GIVING NOTICE

Any notice required to be given by the tax collector under this article may be served personally or by mail; if by mail, service shall be made by depositing the notice in the United States mail, in a sealed envelope with postage paid addressed to the person on whom it is to be served at the address as it appears in the records of the City or as ascertained by the tax collector. The service is complete at the time of the deposit of the notice in the United States mail, without extension of time for any reason.

SEC. 20.98 PETITION FOR REDETERMINATION

Any person against whom a Notice of Determination is made under this article or any person directly interested may petition the tax collector for a redetermination within sixty days after service upon the person of notice thereof. If a petition for redetermination is not filed within the sixty-day period, the determination becomes final at the expiration of the period. If there is no appeal of the tax collector's decision on a petition for redetermination, then the decision of the tax collector shall be final. Writs challenging the tax collector's decision must be filed with the appropriate court within ninety (90) days of the final date of such redetermination. (Code Civ. Proc. § 1094.6.)

SEC. 20.99 CONSIDERATION OF PETITION; HEARING

If a petition for redetermination is filed within the sixty-day period, the tax collector shall reconsider the determination and, if the person has so requested in the petition, shall grant the person an oral hearing, and shall give them ten days' notice of the time and place of the hearing. The tax collector may designate one or more deputies for the purpose of conducting hearings and may continue a hearing from time to time as may be necessary."

SECTION 3. SEVERABILITY

If any section, subsection, sentence, clause or phrase or word of this Ordinance is for any reason held to be unconstitutional, unlawful or otherwise invalid by a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this ordinance.

SECTION 4. EFFECTIVE DATE & POSTING

This Ordinance shall require passage by a 4/5ths vote of the City Council in compliance with the provisions of Section 53724(b) of the California Government Code. This Ordinance shall be posted at City Hall after its second reading by the City Council for at least 30 days. If approved by majority of voters casting votes in the election on November 3, 2026 it shall become effective on July 1, 2027 (the "Effective Date").

SECTION 5. REPEAL AND REPLACEMENT OF EXISTING CITY REAL PROPERTY CONVEYANCE TAX

Upon the Effective Date of this Ordinance, the existing Real Property Conveyance Tax, as enacted under Ordinances Nos. 277 N.S., 282 N.S., and 364 N.S., as codified at City Code Chapter 20, Article IV, shall be repealed, terminated, and of no further force and effect, and shall be replaced by the tax authorized by this Ordinance. In the event that this Ordinance is not adopted by the voters, this Ordinance shall have no effect and the provisions codified at City Code Chapter 20, Article IV shall remain in full force and effect until repealed by the City Council.

SECTION 6. TERMINATION DATE

The authority to levy the tax imposed by this ordinance shall extend until terminated by the voters.

I certify that the foregoing ordinance was passed and adopted by Resolution 57-2026 at the regular meeting of the City Council of the City of Piedmont on July 20, 2026, by the following vote:

Ayes: ANDERSEN, MCCARTHY, LONG, PLIMIER, RAMSEY

Noes: None

Absent: None

Attest: _____
ANNA M. BROWN, City Clerk